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2026:PHHC:087286



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-33693-2026
Decided On: 11.06.2026**

BONNY HITESHKUMAR SHAH AND ANOTHER

....PETITIONER(S)

VERSUS

STATE OF PUNJAB

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. RS Rai, Sr. Advocate with
Mr. Jasraj Singh, Advocate,
Mr. Farhad S. Kohli, Advocate,
Mr. Dhruvvin Dosani, Advocate and
Mr. Dhairyu Patel, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.136 dated 06.05.2026 under Section 318 (4), 336, 336(3), 338, 340 (2), 238 and 61 of BNS, 2023 registered at Police Station Division 8. District Police Commissionerate, Ludhiana.

2. Contention

On behalf of the petitioner

Learned counsel for the petitioners submits that they have been falsely implicated in the present case. It is contended that the petitioners were inducted as partners in the firm, namely M/s Mehta Natwarlal Chhotelal, only

after their marriage into the family and had no involvement whatsoever in the management, administration, accounts, or day-to-day affairs of the firm. Counsel further submits that neither any specific role nor any overt act has been attributed to the petitioners in the FIR. It has been submitted that petitioner No. 1 is a housewife with no role in the conduct of the firm's business, whereas petitioner No. 2 is independently engaged in running tuition classes under the name and style of "Garg Tuition Classes." Their implication is stated to be based solely on the fact that they are the daughters-in-law of the family owning the said firm. It is further submitted that the petitioners are ready and willing to join the investigation and extend full cooperation to the investigating agency.

Notice of motion.

On behalf of the State/Complainant

On the asking of the Court, Mr. Aftab Singh Khara, Sr. DAG Punjab for the respondent/State and Mr. GBS Dhillon, Sr. Advocate (through hybrid mode) with Mr. Jagdeep Singh Bajwa, Advocate for the complainant and filed power of attorney, which is taken on record, accept notice and vehemently opposes the prayer made by learned counsel for the petitioners.

However, they were unable to place on record any material to demonstrate that the petitioners were actively involved in the affairs or business operations of their in-laws' firm.

3. Analysis

Having heard learned counsel for the parties and upon a prima facie consideration of the material available on record, this Court finds that the petitioners were inducted as partners in M/s Mehta Natwarlal Chhotelal only after their marriage into the family and no material has been brought on record

to indicate their active participation in the management, administration, accounts, or day-to-day affairs of the firm. Significantly, neither any specific role nor any overt act has been attributed to the petitioners in the FIR. The State as well as the complainant, despite vehemently opposing the present petition, have failed to point out any material demonstrating the direct involvement of the petitioners in the business operations of the firm. Prima facie, the petitioners appear to be merely sleeping partners, with petitioner No. 1 being a housewife and petitioner No. 2 independently engaged in running tuition classes under the name and style of “Garg Tuition Classes.”

The petitioners have further undertaken in para 4 of the present petition that they are ready and willing to join the investigation and shall fully cooperate in its furtherance. Therefore, this Court finds no reason to decline the present petition.

4. Relief:-

Hence, the petitioners are directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioners shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted

with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.'

However, it is made clear that in case the petitioners do not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

11.06.2026

NainaRajput

Whether speaking/reasoned

:Yes/No

Whether reportable

:Yes/No